

Consciousness of guilt

Defined

The state of mind of an accused person, involving an awareness that he or she was guilty of the offence charged and was attempting by conduct, about which evidence is given in court, to avoid the consequences of that crime. Consciousness of guilt is circumstantial evidence admissible on the question of guilt or as corroboration of a witness and is proved, for example, by lies told by the accused either before or during the trial (*Edwards v The Queen* (1993) 178 CLR 193) or the flight of the accused before or after arrest (*R v Melrose* [1989] 1 Qd R 572; (1987) 30 A Crim R 332): **Butterworths Australian Legal Dictionary**.

In *Zoneff v The Queen* (2000) 200 CLR 234 at [63] Kirby J suggested the phrase “evidence of post-offence conduct” is more appropriate.

Three uses

- Evidence of guilt — either an implied admission or circumstantial evidence
- Corroboration
- Credit

Lies feature as the most often used of these types of evidence.

Some authors distinguish between *probative lies* and *credibility lies*: C R Williams, ‘Lies as evidence’ (2005) 26 *Australian Bar Review* 313.

It is important you understand how you rely on such evidence. More importantly, you must ensure *the court understands* how you say the evidence is relevant and admissible.

Classification & admissibility

Consciousness of guilt or “evidence of post-offence conduct” may be categorised in two ways:

- Evidence of a statement against self-interest, and hence admissible as an exception to the hearsay exclusionary rule; and
- Evidence used circumstantially.

The hearsay-limb

Assertive conduct (aka “express admissions”)

Things intended to convey meaning

1. Verbal
 - May include lies
2. Non-verbal
 - Nod of head
 - Gesture of cutting throat
 - Giving the “bird”

The circumstantial-evidence limb

Non-assertive conduct (aka “implied admissions”)

Things that happen to convey meaning

1. Verbal
 - “Shit! Cops! Run!”
 - Lies
2. Non-verbal
 - Flight
 - Hiding a weapon
 - Concealing stolen property

Specific examples

Lies

Edwards v The Queen (1993) 178 CLR 193; *Mazur* (2000) 113 A Crim R 67; *R v Franklin* (2001) 3 VR 9; *Zoneff v The Queen* (2000) 200 CLR 234. Dealt with in detail as a specific example of consciousness of guilt.

False denials of being...

...at the scene of an offence: *Brazel* (1993) 67 A Crim R 314

...shown heroin located at the defendant’s premises: *Stoiljkovic v DPP*, CCA V, 29/09/92

...known to a co-offender: *Gionfriddo & Faure* (1989) 50 A Crim R 327;

...previously aware of a murder victim’s death till told by police: *R v Prasad*, FC V, 06/08/1992.

False alibi

R v J (No 2) [1998] 3 VR 602; *R v Juric* (2002) 4 VR 411; *R v Turnbull* [1977] 1 QB 224; *Vincec* (1990) 50 A Crim R 203; *R v Turnbull*; *R v Whitby*; *R v Roberts* [1977] QB 224.

Flight

Flight to avoid arrest: *R v Bitossi* [1984] 2 Qd R 51; *Shaw* (1995) 78 A Crim R 150 (Qld); and

Flight to avoid prosecution: *R v McKenna* (1956) 73 WN(NSW) 345 (skipping bail)

See also *R v Gay* [1976] VR 577; *R v Melrose* [1989] 1 Qd R 572; *R v Sofa*, unrep. SC V, 15 Oct 1990; *R v El Adl* [1993] 2 Qd R 195; *Festa v The Queen* (2001) 208 CLR 593; *R v Chang* [2003] VSCA 149 at [39].

Interference with witnesses

R v Higgins, CCA V, 02/03/1994 [not found in the reported version of this case at (1994) 71 A Crim R 429].

Concealment or disposal of a incriminating evidence

Such as a weapon, in *R v Nguyen* (2001) 118 A Crim R 479

Assault on a police officer

R v Chang (2003) 7 VR 236; (2003) 140 A Crim R 573

Bribery or attempted bribery

R v Baker (2000) 78 SASR 103; 118 A Crim R 150; *Fox v The Queen* (1982) 7 A Crim R 28 (Tas CCA); *R v Renzella* [1997] 2 VR 88 at 90 – 1.

False name

Power & Power (1996) 87 A Crim R 407

Lifestyle

Living beyond one's means: *Stoiljkovic v DPP*, CCA V, 29/09/92; *R v Gay* [1976] VR 577

Selective answering

Woon v The Queen (1964) 109 CLR 540. In practice, such a submission is routinely rejected in courts of summary jurisdiction; be prepared to argue. On close reading of *Woon* and *Beljajev*, the submission is properly founded. The length of questioning in *Woon* was quite short.

Restrictions

We may not use the following to demonstrate consciousness of guilt:

- Mere denial. “By no torturing of the statement ‘I did not do the act’ can you extract the evidence ‘I did do the act’: *Edmunds v Edmunds & Ayscough* [1935] VLR 177 at 186.
- Silence
- Rejection of alibi
- Failure to participate in identification parade (and other investigative measures?)
- Bootstraps reasoning

Directions on consciousness of guilt

Edwards direction

When the prosecution relies on lies as showing a consciousness of guilt — or lies of probative guilt — a submission of the type suggested in *Edwards v The Queen* (1993) 178 CLR 193 must be given.

- There must be evidence that is capable of showing consciousness of guilt
- The evidence must be precisely identified
- The use sought to be made of the evidence must be put forward (implied admission, corroboration, credit)
- The evidence must show deliberate conduct or lying
- The lie or conduct must relate to a material issue connected with the offence
- The lie must be proved by independent evidence
- The jury must accept that the lie or conduct springs from realisation of guilt and fear of the truth (*Edwards* at 211)
- The jury must be told there may be other explanations for the conduct apart from realisation of guilt e.g. panic, to escape an unjust accusation, to protect some other person, or to avoid a consequence extraneous to the offence (*Edwards* at 211)
- The jury must be told it may not use the evidence to infer consciousness of guilt if there is a reasonable hypothesis for the conduct or lie

Zoneff direction

Where an accused is cross-examined on lies, and those lies are not suggested to display a consciousness of guilt — they are used only as corroboration or credit — a submission of the type in *Zoneff v The Queen* (2000) 200 CLR 234 should be given; a submission of the type in *Edwards v The Queen* (1993) 178 CLR 193 is unnecessary and undesirable: *Dhanhoa v The Queen* (2003) 217 CLR 1.

You have heard a lot of questions, which attribute lies to the accused. You will make up your own mind about whether he was telling lies and if he was, whether he was doing so deliberately. It is for you to decide what significance those suggested lies have in relation to the issues in the case but I give you this warning: do not follow a process of reasoning to the effect that just because a person is shown to have told a lie about something, that is evidence of guilt: *Zoneff v The Queen* (2000) 200 CLR 234 at 245.